

HEADNOTE

“If an appeal is lodged under R.220.2 RoP and leave is granted in the impugned order itself, the Statement of appeal must be lodged within 15 days of service of that order containing the decision to grant leave. If the decision to grant leave to appeal is contained in a separate order on a request to that effect (which separate order must be issued within 15 days of the impugned order, cf R.220.3 RoP), the Statement of appeal has to be lodged within 15 days from the date of service of this separate order containing the decision to grant leave to appeal.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Action for revocation

PATENT
EP 3 876 490

Methods and apparatus for overlaying multi-carrier and direct sequence spread spectrum signals in a broadband wireless communication system

KEYWORDS

Time period for filing a statement of appeal...

Rule 220 Appealable decisions

SUMMARY

The Court of Appeal Luxembourg ruled on an action for revocation. The patent at issue relates to methods and apparatus for overlaying multi-carrier and direct sequence spread spectrum signals in a broadband wireless communication system. According to the headnote of the decision, when leave to appeal is granted within the initial order itself under Rule 220.2 of the Rules of Procedure, the Statement of appeal must be filed within 15 days from service of that order, but if the leave decision is issued in a separate order instead, the 15-day deadline runs from service of the separate order containing the leave decision.